

REQUEST FOR QUOTATION (THIS IS NOT AN ORDER)		THIS RFQ ☐ IS ☐ IS NOT A SMALL BUSINESS SET-ASIDE			PAGE OF PAGES	
1. REQUEST NO.	2. DATE ISSUED	3. REQUISITION/PURCHASE REQUEST NO.		4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/OR DMS REG. 1	RATING	
5a. ISSUED BY				6. DELIVER BY (Date)		
5b. FOR INFORMATION CALL (NO COLLECT CALLS)				7. DELIVERY		
NAME		TELEPHONE NUMBER		☐ FOB DESTINATION ☐ OTHER (See Schedule)		
		AREA CODE	NUMBER	9. DESTINATION		
8. TO:				a. NAME OF CONSIGNEE		
a. NAME		b. COMPANY		b. STREET ADDRESS		
c. STREET ADDRESS				c. CITY		
d. CITY		e. STATE	f. ZIP CODE	d. STATE	e. ZIP CODE	
10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE CLOSE OF BUSINESS (Date)		IMPORTANT: This is a request for information and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or service. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotation must be completed by the quoter.				
11. SCHEDULE (Include applicable Federal, State and local taxes)						
ITEM NO. (a)	SUPPLIES/ SERVICES (b)		QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
12. DISCOUNT FOR PROMPT PAYMENT			a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS
						NUMBER PERCENTAGE
NOTE: Additional provisions and representations ☐ are ☐ are not attached.						
13. NAME AND ADDRESS OF QUOTER				14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION		15. DATE OF QUOTATION
a. NAME OF QUOTER						
b. STREET ADDRESS				16. SIGNER		
c. COUNTY				a. NAME (Type or print)		b. TELEPHONE
						AREA CODE
d. CITY		e. STATE	f. ZIP CODE	c. TITLE (Type or print)		NUMBER

Section A - Solicitation/Contract Form

VxWorks License

U.S Government ~ Tax Exempt

ISSUED BY:

Name: JaNae Lester (Williams)

Email: janae.a.lester.civ@us.navy.mil

VENDOR CONTACT:

Cage Code:

Company POC:

Phone:

Email:

Reference Your Quote:

TECHNICAL POC:

Name:

Email:

WAWF ACCEPTOR:

PAYMENT/INVOICING ISSUES: PLEASE CONTACT COMPTROLLER BELOW.

N64142 NAWCAD

COMPTROLLER

INTERNAL ENTITLEMENTS TEAM BLDG 440 ROOM 25

47122 LILJENCRANTZ ROAD

PATUXENT RIVER, MD 20670-1549

INTERNAL ENTITLEMENTS TEAM 301-342-9586

EMAIL: PAXR_ACCT_INTERNAL_ENTITLEMENTS@NAVY.MIL

WAWF Invoicing Help & Instructions:

Visit the website at <https://wawf.eb.mil/> and you can find help via the link "Vendors - Getting Started Help" under the New User section.

EARLY AND PARTIAL SHIPMENTS ARE ACCEPTABLE

VENDOR – IF ELECTRONIC EQUIPMENT, PLEASE MARK BOX/PACKAGE CONTAINING ELECTRONIC EQUIPMENT WITH THE “DO NOT SCAN” STICKER

RECEIVING DOC HOURS ARE MONDAY THROUGH FRIDAY, 0630-1500 EST.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	500-184505; Wind River VxWorks 653 Multi-Core Cert Edition 3, Perpetual, Node Locked. PPC: Freescale: QorlQT2xxx				
0002	535-103796 Support & Maintenance-Object Code, Node Locked. PPC: Freescale: QorlQ T2xxx. Internal Number: 1020588306 Pricing Arrangement: Firm Fixed Price	2	Each		
0003	500-185649. VxWorks 653 Multi-Core Edition Cert Edition 3-Project License-Perpetual. PPC: Freescale: QorlQ T2xxx				
0004	535-186273. PROJECT LICENSE MAINTENANCE. PPC: Freescale: QorlQ T2xxx Internal Number: 1020739419 Pricing Arrangement: Firm Fixed Price	1	Each		

Section C - Description/Specifications/Statement of Work

Statement of Work For Wind River VxWorks

Background:

The Atlantic Test Range, Range Display Systems (RDS) team is developing a Ground Based Detect and Avoid System (GBDAA) for UAS operations. The system will be used to enhance aircraft test situational awareness and alleviate much of the visual observer and manned aircraft chase for flights in and between the Patuxent River Naval Air Station, MD (PAX) restricted airspace. The Guardian GBDAA system will be used to support ATR unmanned aircraft platforms and will serve as a safety of flight critical system. As a safety critical system, development is required on and for safety certified hardware and must run on a safety certified Operating System (OS) which meets the DO-178C and MIL-STD-882E requirements, as well as customer, operational and system requirements in order to meet needed capabilities while maintaining system safety integrity.

The Guardian project provides the capability to fully integrate Unmanned Aerial Surveillance into the National Airspace System (NAS) allowing UAS operating harmoniously, side-by-side with manned aircraft, occupying the same airspace.

Scope:

While the VxWorks purchase is a perpetual purchase (the software belongs to the US Navy in perpetuity), Maintenance of that software is annually renewable. Maintenance includes access to the Wind River online Knowledge Base for your users to self-service any technical issues that may arise, as well as access to our customer support team for any issues they are having with the software. Maintenance is mandatory for the first year, and is optional for each 12-month period after the first year. Without an annual Maintenance agreement in place for the software referenced above, our development team would run the risk of having to self-diagnose and solve any Wind River software related issues independent of support from our team causing delays and quality of product

The following are minimum requirement of the government:

- Solution MUST be a real-time operating system
- Solution MUST support avionics systems
- Solution MUST satisfy DO-178C DAL-B certification standards
- Solution MUST be able to provide DO-178C certification evidence
- Solution MUST support ARINC 653 applications
- Solution MUST provide development and debugging tools
- Solution MUST support multi-core processors
- Solution MUST support time and space partitioning
- Solution MUST provide installation and integration support
- Solution MUST provide system engineering and architecture support
- Solution MUST provide DO-178 compliant Network Stack
- Solution MUST provide virtual simulated target hardware capability for software development
- Solution MUST support Future Airborne Capabilities Environment (FACE) Technical Standards
- Solution MUST provide product update and maintenance support

The following capabilities are provided by the identified solution:

- RTCA DO-178C CERTIFICATION EVIDENCE

To ensure that airborne systems meet the demands of a variety of safety criticality levels, the global aerospace community developed the RTCA DO-178C and EUROCAE ED-12C airborne avionics standards. These standards provide guidance on creating, certifying, and deploying airborne systems. They are now uniformly enforced by a wide range of commercial aviation control organizations, including the U.S. Federal Aviation Administration (FAA), the European Aviation Safety Agency (EASA), Transport Canada, and others.

VxWorks 653 Multi-core Edition offers a commercial off-the-shelf (COTS) DO-178C and ED-12C Certification Evidence package, which provides comprehensive safety certification evidence, enabling avionics manufacturers to meet the stringent DO-178C. This certification evidence contains artifacts from core components VxWorks GOS APIs, and ARINC 653 APEX APIs. These artifacts include designs, tests, reviews, source code, build files, test results, annotated object-level code coverage, and tool qualification data for critical IMA systems.

- VxWorks 653 Multi-core Edition offers a range of benefits for avionics development teams, including the following:
 - Industry standards conformance: Runtime conformant to global avionics and to business safety standards such as ARINC Specification 653, POSIX(r), the Future Airborne Capabilities Environment (FACE(TM)) Technical Standard, RTCA DO-178C, and RTCA DO-297
 - Safety and security: Time and space partitioning with MMU and hardware virtualization assist, deterministic software, and strict communications control
 - Certification evidence: COTS certification evidence to support rapid customer certification
 - Portability: The ability to reuse existing ARINC 653 applications and VxWorks kernel mode applications and drivers, from "simple" systems to complex systems and next generation virtualized multi-core platforms
 - Development tools: Powerful kernel-aware development and debugging tools including Wind River(r) Workbench
- Wind River DO-178 Network Stack for VxWorks 653, a configurable option for Wind River VxWorks 653 Multi-core Edition, is a UDP/TCP IPv4 network stack that provides the following main features:
 - UDP/TCP IPv4 stack over Ethernet
 - BSD sockets API
 - ICMPv4
 - IGMPv1
 - Multi-cast
 - Certification evidence for DO-178C Level A is available
- Installation and orientation service
 - Onsite installation: Guided installation on your hardware and host platform, along with a sample build process, demonstrations, and examples of customizations
 - Hands-on orientation: Architecture, development file system, adding open source packages, porting drivers, addressing design issues
 - Advice: Introduction to Wind River support channels and processes, additional services, project review, and consultation The Wind River Installation and Orientation Service accelerates engineering productivity and helps our customers reach the full potential of the VxWorks 653 3.x Platform.

Delivery Items:

License Number: 682980 (Perpetual)

1. 1.00 Wind River VxWorks 653 Multi-Core Cert Edition 3, Perpetual, Node Locked. PPC: Freescale: QorIQ T2xxx

P/N 500-184505 QTY 2

2. 1.01 Support & Maintenance - Object Code, Node Locked. PPC: Freescale: QorIQ T2xxx

P/N 535-103796 QTY 2

3. 2.00 VxWorks 653 Multi-Core Edition Cert Edition 3 - Project License - Perpetual. PPC:
Freescale: QorIQ T2xxx

P/N 500-185649 QTY 1

4. 2.01 Project License Maintenance. PPC: Freescale: QorIQ T2xxx

P/N 535-186273 QTY 1

PoP:

15 June 2026 - 14 June 2027

Requirements

VxWorks project license maintenance and support

Section D - Packaging and Marking

Section E - Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0002	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N00421 CountryCode: USA COMMANDER NAVAL AIR WARFARE CENTER AIR DIV, 47179 VAUGHN ROAD BLDG 665 PATUXENT RIVER, MD 20670-5000 UNITED STATES Eric Harvey, TPOC Email: eric.b.harvey8.civ@us.navy.mil Telephone: 301-342-3628
0004	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N00421 CountryCode: USA COMMANDER NAVAL AIR WARFARE CENTER AIR DIV, 47179 VAUGHN ROAD BLDG 665 PATUXENT RIVER, MD 20670-5000 UNITED STATES Eric Harvey, TPOC Email: eric.b.harvey8.civ@us.navy.mil Telephone: 301-342-3628

Section F - Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
0002	Delivery Cycle From 15 Jun 2026 to 14 Jun 2027 Period of Performance From 15 Jun 2026 To 14 Jun 2027	2 Each	Ship To DoDAAC: N00421 CountryCode: USA COMMANDER NAVAL AIR WARFARE CENTER AIR DIV, 47179 VAUGHN ROAD BLDG 665 PATUXENT RIVER, MD 20670-5000 UNITED STATES Eric Harvey, TPOC Email: eric.b.harvey8.civ@us.navy.mil Telephone: 301-342-3628
0004	Delivery Cycle From 15 Jun 2026 to 14 Jun 2027 Period of Performance From 15 Jun 2026 To 14 Jun 2027	1 Each	Ship To DoDAAC: N00421 CountryCode: USA COMMANDER NAVAL AIR WARFARE CENTER AIR DIV, 47179 VAUGHN ROAD BLDG 665 PATUXENT RIVER, MD 20670-5000 UNITED STATES Eric Harvey, TPOC Email: eric.b.harvey8.civ@us.navy.mil Telephone: 301-342-3628

Section G - Contract Administration Data

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

2-in-1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N64142</u>
Issue By DoDAAC	<u>N00421</u>
Admin DoDAAC	<u>N00421</u>
Inspect By DoDAAC	<u>N00421</u>
Ship To Code	<u>N00421</u>
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	<u>N00421</u>
Service Acceptor (DoDAAC)	<u>N00421</u>
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	==

Other DoDAAC(s)	==
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(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Kevin Wright, 301-342-8753, kevin.b.wright.civ@us.navy.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

Ben Flores, benjamin.r.flores3.civ@us.navy.mil

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	Apr 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Apr 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.239-7010	Cloud Computing Services.	Jan 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

DFARS Clauses Incorporated by Full Text

252.237-7023 Continuation of Essential Contractor Services. (Oct 2010)

CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) *Definitions.* As used in this clause-

(1) "Essential contractor service" means a service provided by a firm or individual under contract to DoD to support mission-essential functions, such as support of vital systems, including ships owned, leased, or operated in support of military missions or roles at sea; associated support activities, including installation, garrison, and base support services; and similar services provided to foreign military sales customers under the Security Assistance Program. Services are essential if the effectiveness of defense systems or operations has the potential to be seriously impaired by the interruption of these services, as determined by the appropriate functional commander or civilian equivalent.

(2) "Mission-essential functions" means those organizational activities that must be performed under all circumstances to achieve DoD component missions or responsibilities, as determined by the appropriate functional commander or civilian equivalent. Failure to perform or sustain these functions would significantly affect DoD's ability to provide vital services or exercise authority, direction, and control.

(b) The Government has identified all or a portion of the contractor services performed under this contract as essential contractor services in support of mission essential functions. These services are listed in attachment , Mission-Essential Contractor Services, dated .

(c)(1) The Mission-Essential Contractor Services Plan submitted by the Contractor, is incorporated in this contract.

(2) The Contractor shall maintain and update its plan as necessary. The Contractor shall provide all plan updates to the Contracting Officer for approval.

(3) As directed by the Contracting Officer, the Contractor shall participate in training events, exercises, and drills associated with Government efforts to test the effectiveness of continuity of operations procedures and practices.

(d)(1) Notwithstanding any other clause of this contract, the contractor shall be responsible to perform those services identified as essential contractor services during crisis situations (as directed by the Contracting Officer), in accordance with its Mission-Essential Contractor Services Plan.

(2) In the event the Contractor anticipates not being able to perform any of the essential contractor services identified in accordance with paragraph (b) of this section during a crisis situation, the Contractor shall notify the Contracting Officer or other designated representative as expeditiously as possible and use its best efforts to cooperate with the Government in the Government's efforts to maintain the continuity of operations.

(e) The Government reserves the right in such crisis situations to use Federal employees, military personnel or contract support from other contractors, or to enter into new contracts for essential contractor services.

(f) Changes. The Contractor shall segregate and separately identify all costs incurred in continuing performance of essential services in a crisis situation. The Contractor shall notify the Contracting Officer of an increase or decrease in costs within ninety days after continued performance has been directed by the Contracting Officer, or within any additional period that the Contracting Officer approves in writing, but not later than the date of final payment under the contract. The Contractor's notice shall include the Contractor's proposal for an equitable adjustment and any data supporting the increase or decrease in the form prescribed by the Contracting Officer. The parties shall negotiate an equitable price adjustment to the contract price, delivery schedule, or both as soon as is practicable after receipt of the Contractor's proposal.

(g) The Contractor shall include the substance of this clause, including this paragraph (g), in subcontracts for the essential services.

(End of clause)

Section J - List of Attachments

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.239-7009 Representation of Use of Cloud Computing.

(Sep 2015)

REPRESENTATION OF USE OF CLOUD COMPUTING (SEP 2015)

(a) *Definition.* "Cloud computing," as used in this provision, means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

(b) The Offeror shall indicate by checking the appropriate blank in paragraph (c) of this provision whether the use of cloud computing is anticipated under the resultant contract.

(c) *Representation.* The Offeror represents that it-

☐ Does anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

☐ Does not anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

DFARS Clauses Incorporated by Full Text

252.237-7024 Notice of Continuation of Essential Contractor Services. (Oct 2010)

NOTICE OF CONTINUATION OF ESSENTIAL CONTRACTOR SERVICES (OCT 2010)

(a) *Definitions.* "Essential contractor service" and "mission-essential functions" have the meanings given in the clause at 252.237-7023, Continuation of Essential Contractor Services, in this solicitation.

(b) The offeror shall provide with its offer a written plan describing how it will continue to perform the essential contractor services listed in attachment ____, Mission Essential Contractor Services, dated ____, during periods of crisis. The offeror shall-

(1) Identify provisions made for the acquisition of essential personnel and resources, if necessary, for continuity of operations for up to 30 days or until normal operations can be resumed;

(2) Address in the plan, at a minimum-

(i) Challenges associated with maintaining essential contractor services during an extended event, such as a pandemic that occurs in repeated waves;

(ii) The time lapse associated with the initiation of the acquisition of essential personnel and resources and their actual availability on site;

(iii) The components, processes, and requirements for the identification, training, and preparedness of personnel who are capable of relocating to alternate facilities or performing work from home;

(iv) Any established alert and notification procedures for mobilizing identified "essential contractor service" personnel; and

(v) The approach for communicating expectations to contractor employees regarding their roles and responsibilities during a crisis.

(End of provision)

Section M - Evaluation Factors for Award